

SEPARATE OPINION OF M. DE TOMCSÁNYI.

[*Translation.*]

I regret that I am unable to agree with the Court's judgment.

As regards my own opinion on the matter, it will suffice that I refer to Mr. Hudson's dissenting opinion, for what is stated therein is entirely in accordance with my own view.

Founding myself on the arguments set forth in the above-mentioned opinion, I would summarize my views on the question as follows:

The Hungarian Government's appeal against the judgments delivered by the Hungaro-Yugoslav Mixed Arbitral Tribunal on July 22nd, 1935, in cases Nos. 749, 750, 747, Pajzs, Csáky, Esterházy *versus* the Yugoslav State, should have been entertained, and the judgments should have been reviewed, as being ill-founded.

As the Court did not entertain the appeal, it should, interpreting and applying the Paris Agreements, have declared that the attitude of Yugoslavia—that is to say the Yugoslav Government's refusal to pay the so-called local indemnities to the Hungarian nationals who had never intended to claim anything except Yugoslav national treatment, and who had therefore never instituted proceedings against the Agrarian Fund, or to the Hungarian nationals who had instituted proceedings against the Agrarian Fund, but whose claims against the Fund have been disallowed by the Mixed Arbitral Tribunal—that this attitude was not warranted by the Paris Agreements and that it was therefore contrary to the normal rules of international law, for it constituted discriminatory treatment of the above-mentioned Hungarian nationals.

(Signed) G. P. DE TOMCSÁNYI.